



Professional Services Agreement

This Professional Services Agreement (this “Agreement”) is dated **3-10-25** and is between **EDWARDS TREE SERVICE AND LANDCLEARING, INC.** (the “Service Provider”) and **KBC ILLINOIS INVESTMENTS, LLC** (the “Customer”).

1. **Services.** Service Provider shall provide to Customer the services (the “Services”) set forth in any written order signed by Service Provider and Customer for the purchase of Services under this Agreement (each, a “Work Order”). The agreed form of Work Order is attached as Exhibit A to this Agreement. Service Provider shall provide the Services (a) in accordance with the terms and subject to the conditions set forth in this Agreement; (b) using personnel of required skill, experience, licenses, and qualifications; (c) in a timely, workmanlike, and professional manner; (d) in accordance with the highest professional standards in Service Provider’s field; and (e) to the reasonable satisfaction of Customer. Nothing in this Agreement shall prevent Customer from performing for itself or acquiring from other providers the same or similar services, nor prevent Service Provider from providing the same or similar services to other customers (subject to confidentiality and intellectual property obligations set forth below). Service Provider shall not subcontract the Services without Customer’s prior written consent. Any changes to the scope of Services must be agreed by the parties in a written amendment in accordance with Section 12.7.

2. **Extension to Affiliates.** Any Affiliate of Customer may enter into Work Orders with Service Provider under this Agreement and this Agreement will apply to each such Work Order as if the Affiliate was a signatory to the Agreement. Each Work Order is a separate obligation of the Affiliate entity or entities that execute(s) such Work Order, and no other Affiliate entity has any liability or obligation under such Work Order. For purposes of this Agreement, “Affiliate” means, with respect to a particular person, any entity that directly or indirectly controls, is controlled by, or is under common control with such person.

3. Term and Termination.

3.1 **Term; Renewal.** This Agreement commences the Effective Date and will continue until the completion of the Services (the “Term”), unless sooner terminated pursuant to this Section 2.

3.2 **Termination for Convenience.** Customer, in its sole discretion, may terminate this Agreement, in whole or in part, at any time without cause, by providing at least 10 days’ prior written notice to Service Provider.

3.3 **Termination for Cause.** Either party may terminate this Agreement, effective upon written notice to the other party (the “Defaulting Party”), if the Defaulting Party (a) breaches this Agreement, and such breach is incapable of cure, or with respect to a breach capable of cure, the Defaulting Party does not cure such breach within 10 days after receipt of written notice of such breach; (b) becomes insolvent; (c) admits its inability to pay its debts generally as they become due; (d) becomes subject to any bankruptcy proceeding which is not dismissed or vacated within 90 days after filing; (e) is dissolved or liquidated; (f) makes a general assignment for the benefit of creditors; or (g) has a receiver, trustee, custodian, or similar agent appointed by court order to take charge of or sell any material portion of its property or business.

3.4 Effects of Termination or Expiration. Upon expiration or termination of this Agreement for any reason, (a) Service Provider shall: (i) deliver to Customer all documents, work product, and other materials, whether or not complete, prepared by or on behalf of Service Provider in the course of performing the Services; (ii) return to Customer all Customer-owned property, equipment, or materials in its possession or control; (iii) remove any Service Provider-owned property, equipment, or materials located at Customer's locations; and (iv) provide reasonable cooperation and assistance to Customer in transitioning the Services to an alternate service provider; and (b) each party shall return to the other party or destroy, at the other party's discretion, all documents and tangible materials (and any copies, physical or electronic) containing, reflecting, incorporating or based on the other party's Confidential Information and certify in writing that it has done so; provided, however, that Customer may retain copies of any Confidential Information of Service Provider incorporated in the Deliverables, as defined in Section 5.1, or to the extent necessary to allow it to make full use of the Services and any Deliverables.

3.5 Survival. The rights and obligations of the parties set forth in this Section 3.5 and Section 3.4, Section 5, Section 6, Section 7, Section 8, Section 10, and any right or obligation of the parties in this Agreement which, by its nature, should survive termination or expiration of this Agreement, will survive any such termination or expiration of this Agreement.

4. Fees and Expenses; Payment Terms.

4.1 In General. In consideration of the provision of the Services by the Service Provider and the rights granted to Customer under this Agreement, Customer shall pay the fees as follows:

A. Time and Materials. For Services provided on a time and materials basis, Customer shall pay fees (the "Fees") calculated in accordance with Service Provider's fee rates as set forth in Exhibit A.

B. Fixed Price. Where Services are provided for a fixed price, the total Fees shall be the amount set out in Exhibit A.

C. Expense Reimbursement. Customer shall reimburse Service Provider for all actual, documented, and reasonable travel and out-of-pocket expenses incurred by Service Provider in performing the Services that have been approved in advance in writing by Customer at Service Provider's actual cost. Service Provider shall obtain Customer's written consent prior to incurring any expense.

4.2 Invoicing and Payment. Service Provider shall issue invoices to Customer: (a) monthly in arrears for its fees for the immediately preceding month for time and materials Services; and (b) when any installment is due/as indicated in the Exhibit for fixed price Services. Each invoice shall also include a detailed breakdown of reimbursable expenses incurred in connection with the applicable Services. Customer shall pay all properly invoiced amounts due to Service Provider within 30 days after Customer's receipt of such invoice, except for any amounts disputed by Customer in good faith, with no right of setoff. All payments hereunder shall be in US dollars and made by check or wire transfer.

4.3 **Taxes.** Customer shall be responsible for all sales, use, and excise taxes, and any other similar taxes, duties, and charges of any kind imposed by any federal, state, or local governmental entity on any amounts payable by Customer hereunder except for any taxes imposed on, or with respect to, Service Provider's income, revenues, gross receipts, personnel, or real or personal property or other assets.

5. **Intellectual Property.**

5.1 **General.** Except as set forth in Section 5.2, all intellectual property rights, including copyrights, patents, patent disclosures and inventions (whether patentable or not), trademarks, service marks, trade secrets, know-how, and other confidential information, trade dress, trade names, logos, corporate names and domain names, together with all of the goodwill associated therewith, derivative works and all other rights (collectively, "Intellectual Property Rights") in and to all documents, work product and other materials that are delivered to Customer under this Agreement or prepared by or on behalf of Service Provider in the course of performing the Services (collectively, the "Deliverables") shall be owned exclusively by Customer. Service Provider agrees and will cause its Service Provider personnel to agree, that with respect to any Deliverables that may qualify as "work made for hire" as defined in 17 U.S.C. §101, such Deliverables are hereby deemed a "work made for hire" for Customer. To the extent that any of the Deliverables do not constitute a "work made for hire," Service Provider hereby irrevocably assigns and shall cause its personnel to irrevocably assign to Customer all Intellectual Property Rights worldwide in the Deliverables. The Service Provider shall cause its personnel to irrevocably waive, to the extent permitted by applicable law, any and all claims such Service Provider personnel may now or hereafter have in any jurisdiction to so-called "moral rights" or rights of droit moral with respect to the Deliverables.

5.2 **Pre-Existing Material.** All Intellectual Property Rights in all documents, data, know-how, methodologies, software, and other materials provided by or used by Service Provider in performing the Services and developed or acquired by the Service Provider prior to this Agreement (collectively, "Pre-Existing Materials") shall be owned exclusively by Service Provider and its licensors. Service Provider hereby grants Customer an irrevocable, perpetual, fully paid-up, royalty-free, non-exclusive license to use, display, reproduce, distribute, transmit, modify (including to create derivative works), import, make, have made, sell, offer to sell and otherwise exploit any Pre-Existing Materials to the extent incorporated in or otherwise necessary for the use of the Deliverables. All other rights in and to the Pre-Existing Materials are expressly reserved by Service Provider.

6. **Confidential Information.** All non-public, confidential or proprietary information of either party ("Confidential Information"), including, but not limited to, information about such party's business affairs, products, services, methodologies, confidential intellectual property, trade secrets, third-party confidential information, and other sensitive or proprietary information, disclosed by one party (the "Disclosing Party") to the other party (the "Receiving Party"), whether disclosed orally or disclosed or accessed in written, electronic, or other form or media, or otherwise learned by the Receiving Party in connection with this Agreement, and whether or not marked, designated, or otherwise identified as "confidential," is confidential, solely for use in performing this Agreement and may not be disclosed or copied unless authorized by the Disclosing Party in writing. The Receiving Party shall protect and safeguard

the confidentiality of the Disclosing Party's Confidential Information with at least the same degree of care as the Receiving Party would protect its own Confidential Information, but in no event with less than a commercially reasonable degree of care. Confidential Information does not include any information that: (a) is or becomes generally available to the public other than as a result of the Receiving Party's breach of this Agreement; (b) is obtained by the Receiving Party on a non-confidential basis from a third-party that was not legally or contractually restricted from disclosing such information; (c) the Receiving Party establishes by documentary evidence, was in its possession prior to the Disclosing Party's disclosure hereunder; (d) was or is independently developed by the Receiving Party without using any of the Disclosing Party's Confidential Information; or (e) is required to be disclosed under applicable federal, state or local law, regulation or a valid order issued by a court or governmental agency of competent jurisdiction. The Receiving Party shall be responsible for any breach of this Section 7 caused by any of its employees, contractors, agents, or representatives. On the expiration or termination of the Agreement, the Receiving Party shall promptly return, and shall require its Representatives to return to the Disclosing Party all copies, whether in written, electronic or other form or media, of the Disclosing Party's Confidential Information, or destroy all such copies and certify in writing to the Disclosing Party that such Confidential Information has been destroyed.

7. Representations and Warranties.

7.1 Mutual. Each party represents and warrants to the other party that: (a) it has the full right, power, and authority to enter into this Agreement, to grant the rights and licenses granted hereunder and to perform its obligations hereunder; and (b) when executed and delivered by such party, this Agreement will constitute the legal, valid and binding obligation of such party, enforceable against such party in accordance with its terms.

7.2 Service Provider. Service Provider represents and warrants to Customer that: (a) it shall perform the Services in a professional and workmanlike manner in accordance with generally recognized industry standards for similar services and in compliance with all applicable laws, and shall devote adequate resources to meet its obligations under this Agreement; (b) the Services and Deliverables shall conform in all material respects with the specifications and will be performed to Customer's reasonable satisfaction; and (c) the Services and Deliverables, and Customer's use thereof, do not and will not infringe any Intellectual Property Right of any third party arising under the Law of the United States.

7.3 Disclaimer. EXCEPT FOR THE EXPRESS WARRANTIES IN THIS AGREEMENT, (A) EACH PARTY HEREBY DISCLAIMS ALL WARRANTIES, EITHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE UNDER THIS AGREEMENT, AND (B) SERVICE PROVIDER SPECIFICALLY DISCLAIMS ALL IMPLIED WARRANTIES OF MERCHANTABILITY, AND FITNESS FOR A PARTICULAR PURPOSE.

8. Indemnification.

8.1 General. Each party ("Indemnifying Party") shall indemnify, defend, and hold harmless the other party and its officers, directors, employees, agents, affiliates, successors, and permitted assigns ("Indemnified Party") against any and all losses, damages, liabilities, deficiencies, claims, actions, judgments, settlements, interest, awards, penalties, fines, costs, or expenses of whatever kind, including reasonable attorneys' fees and costs, incurred by Indemnified Party (collectively, "Losses"), arising out of or resulting from any claim of a third party

arising out of or occurring in connection with: (a) bodily injury, death of any person or damage to real or tangible, personal property resulting from Indemnifying Party's willful, fraudulent or negligent acts or omissions; or (b) Indemnifying Party's negligence, willful misconduct, or breach of this Agreement, including but not limited to breach of any representation or warranty made by Indemnifying Party in this Agreement.

8.2 Intellectual Property Infringement. Service Provider shall defend, indemnify, and hold harmless the Customer Indemnitees from and against all Losses based on a claim that any of the Services or Deliverables or Customer's receipt or use thereof infringes any Intellectual Property Right of a third party; provided, however, that Service Provider shall have no obligations under this Section 8.2 with respect to claims to the extent arising out of (a) any instruction, information, designs, specifications, or other materials provided by Customer in writing to Service Provider; (b) Customer's use of the Deliverables in combination with any materials or equipment not supplied to Customer or specified by Service Provider in writing; or (c) any modifications or changes made to the Deliverables other than by Service Provider.

9. LIMITATION OF LIABILITY. EXCEPT FOR OBLIGATIONS TO MAKE PAYMENT, INDEMNIFICATION OBLIGATIONS, LIABILITY FOR BREACH OF CONFIDENTIALITY, OR LIABILITY FOR INFRINGEMENT OF INTELLECTUAL PROPERTY RIGHTS, IN NO EVENT WILL EITHER PARTY BE LIABLE TO THE OTHER PARTY FOR: (A) ANY LOSS OF USE, REVENUE, OR PROFIT OR LOSS OF DATA OR FOR ANY CONSEQUENTIAL, INCIDENTAL, INDIRECT, EXEMPLARY, SPECIAL, OR PUNITIVE DAMAGES WHETHER ARISING OUT OF BREACH OF CONTRACT, TORT (INCLUDING NEGLIGENCE) OR OTHERWISE, REGARDLESS OF WHETHER SUCH DAMAGE WAS FORESEEABLE AND WHETHER OR NOT SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

10. Insurance. During the Term of this agreement, Service Provider shall, at its own expense, maintain and carry insurance in full force and effect with financially sound and reputable insurers, that includes, but is not limited to: (a) Commercial General Liability with limits no less than \$2,000,000 per occurrence and \$2,000,000 in the aggregate, including bodily injury and property damage and products and completed operations and advertising liability, which policy will include contractual liability coverage insuring the activities of Service Provider under this Agreement; (b) Worker's Compensation with limits no less than the minimum amount required by applicable law; (c) Commercial Automobile Liability with limits no less than \$1,000,000, combined single limit; and (d) Errors and Omissions/Professional Liability with limits no less than \$2,000,000 per occurrence and \$2,000,000 in the aggregate. Upon Customer's request, Service Provider shall provide Customer with a certificate of insurance from Service Provider's insurer evidencing the insurance coverage specified in this Agreement. The certificate of insurance shall name Customer as an additional insured. Service Provider shall provide Customer with 30 days' advance written notice in the event of a cancellation or material change in Service Provider's insurance policy. Except where prohibited by law, Service Provider shall require its insurer to waive all rights of subrogation against Customer's insurers and Customer or the Indemnified Parties.

11. Force Majeure. No party shall be liable or responsible to the other party, nor be deemed to have defaulted under or breached this Agreement, for any failure or delay in fulfilling or performing any term of this Agreement, when and to the extent such failure or delay is caused by or results from events outside of the party's reasonable control ("Force Majeure Events"), including but not limited to: (a) acts of God; (b) flood, fire, earthquake, or explosion; (c) war, invasion, hostilities (whether war is declared or

not), terrorist threats or acts, riot, or other civil unrest; (d) government order or law; (e) actions, embargoes, or blockades in effect on or after the date of this Agreement; (f) action by any governmental authority; and (g) national or regional emergency. The affected party shall resume performance under this Agreement as soon as reasonably practicable after the Force Majeure Event has been resolved or terminated.

12. Miscellaneous.

12.1 Independent Contractors. The parties are independent contractors, and nothing contained in this Agreement shall be construed as creating any agency, partnership, joint venture or other form of joint enterprise, employment, or fiduciary relationship between them. Neither party shall be authorized to contract for or bind the other party in any manner whatsoever.

12.2 No Publicity. Neither party shall issue or release any announcement, statement, press release, or other publicity or marketing materials relating to this Agreement, or otherwise use the other party's trademarks, service marks, trade names, logos, symbols, or brand names, in each case, without the prior written consent of the other party.

12.3 Notice. All notices, requests, consents, claims, demands, waivers, and other communications hereunder (each, a "Notice") shall be in writing and addressed to the parties at the addresses set forth below their signatures to this Agreement (or to such other address that may be designated by the receiving party from time to time in accordance with this Section). All Notices shall be delivered by personal delivery, nationally recognized overnight courier (with all fees pre-paid), or email or certified or registered mail (in each case, return receipt requested, postage pre-paid). Except as otherwise provided in this Agreement, a Notice is effective only (a) upon receipt by the receiving party; and (b) if the party giving the Notice has complied with the requirements of this Section.

12.4 Entire Agreement; Order of Precedence. This Agreement, together with all Schedules and Exhibits and any other documents incorporated herein by reference, constitutes the sole and entire agreement of the parties to this Agreement with respect to the subject matter contained herein, and supersedes all prior and contemporaneous understandings and agreements, both written and oral, with respect to such subject matter. In the event of any conflict between the terms and provisions of this Agreement and those of any Schedule or Exhibit, then the terms of this Agreement shall control unless expressly set forth otherwise in the applicable Schedule or Exhibit.

12.5 Assignment. Service Provider shall not may assign, transfer, or delegate any or all of its rights or obligations under this Agreement, including by operation of law, change of control, or merger, without the prior written consent of Customer. No assignment shall relieve the assigning party of any of its obligations hereunder. Any attempted assignment, transfer or other conveyance in violation of the foregoing shall be null and void. This Agreement shall be binding upon and shall inure to the benefit of the parties hereto and their respective successors and permitted assigns.

12.6 No Third-Party Beneficiaries. This Agreement is for the sole benefit of the parties hereto and their respective successors and permitted assigns and nothing herein, express or

implied, is intended to or shall confer upon any other Person any legal or equitable right, benefit, or remedy of any nature whatsoever, under or by reason of this Agreement.

12.7 Amendment and Modification; Waiver. This Agreement may be amended, modified, or supplemented only by an agreement in writing signed by each party hereto. No failure to exercise any rights, remedy, power or privilege ("Right(s)") arising from this Agreement shall operate or be construed as a waiver thereof. No single or partial exercise of any Right hereunder precludes any other or further exercise thereof or the exercise of any other Right.

12.8 Severability. No invalidity, illegality, or unenforceability of any provision herein in any jurisdiction, shall affect any other term or provision of this Agreement or invalidate or render such provision unenforceable in any other jurisdiction. If any provision is determined to be invalid, illegal, or unenforceable, the parties hereto shall negotiate in good faith to modify this Agreement so as to effect the original intent of the parties as closely as possible.

12.9 Governing Law: Submission to Jurisdiction. This Agreement shall be governed by and construed in accordance with the internal laws of the State of Ohio without giving effect to any choice or conflict of law provision or rule that would cause the application of laws of any other jurisdiction. Any legal suit, action, or proceeding arising out of or related to this Agreement or the Services provided hereunder shall be instituted exclusively in the state or federal courts in Franklin County, Ohio, and each party irrevocably: (a) submits to the exclusive jurisdiction of such courts; and (b) waives any objection to such courts based on venue or inconvenience; and (c) waives any right to trial by jury. Service of process, summons, notice or other document by mail to such party's address set forth herein shall be effective service of process for any suit, action, or other proceeding brought in any such court.

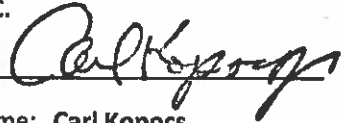
12.10 Equitable Relief; Cumulative Remedies. Each party acknowledges that a breach of Section 5 (Intellectual Property Rights; Ownership) or Section 6 (Confidentiality) may cause the non-breaching party irreparable damages, for which an award of damages would not be adequate compensation. In the event of such breach or threatened breach, the non-breaching party will be entitled to seek equitable relief. Except as expressly set forth in this Agreement, the right and remedies under this Agreement are cumulative and in addition to any other rights or remedies available at law or in equity or otherwise.

12.11 Counterparts. This Agreement may be executed in counterparts, each of which shall be deemed an original, but all of which together shall be deemed to be one and the same agreement. A signed copy of this Agreement delivered by, e-mail or other means of electronic transmission] shall be deemed to have the same legal effect as delivery of an original signed copy of this Agreement.

[signature page follows]

The parties have executed this Agreement as of the date first above written.

EDWARDS TREE SERVICE AND LANDCLEARING,
INC.

By: 

Name: Carl Kopocs

Title: President

KBC ILLINOIS INVESTMENTS, LLC

By: 

Name: Ryan O'Leary

Title: Partner

Service Provider Notice Address:

Edwards Tree Service and Landclearing, Inc.
49090 Cooper Foster Park Road
Amherst, OH 44001

Customer Notice Address:

KBC Illinois Investments, LLC
330 W. Chestnut Street
Suite 2E
Hinsdale, IL 60521

With copy to:

KBC Advisors
5628 Airport Way S
Suite 238
Seattle, WA 98108

Exhibit A

WORK ORDER

This Work Order is entered into and made a part of the Professional Services Agreement between KBC Illinois Investments, LLC and Edwards Tree Service and Landclearing Inc. dated **3-10-25** ("Agreement"). All capitalized terms not defined in this Work Order have the respective meanings set forth in the Agreement. To the extent that the terms of this Work Order conflict with any of the terms of the Agreement, and the Work Order explicitly states that it intends to modify the conflicting terms, this Work Order supersedes the Agreement.

1. DESCRIPTION OF PROJECT SERVICES: **See proposal below.**

2. GENERAL DESCRIPTION OF WORK PRODUCT/DELIVERABLES:

Deliverables: **See proposal below.**

Date Due: **06/15/2025**

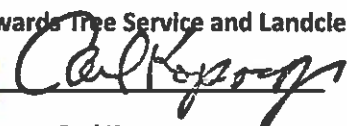
Payment: **See proposal below.**

3. LOCATION(S) WHERE SERVICES WILL BE PROVIDED: **9.99-acre tract of vacant land located along the north side of Tech Center Drive at the intersection of Science Blvd. in Gahanna, OH.**

4. START DATE OF SERVICES: **Date of Tree Clearing Permit received by Gahanna, OH.**

5. REQUIRED COMPLETION DATE: **6/15/25**

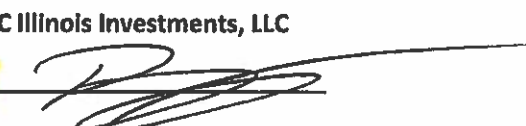
Edwards Tree Service and Landclearing, Inc.

By: 

Name: Carl Kopocs

Title: President

KBC Illinois Investments, LLC

By: 

Name: Ryan O'Leary

Title: Partner

EDWARDS TREE SERVICE AND LANDCLEARING, INC.

49090 Cooper Foster Park Road
Amherst, Ohio 44001
1/3 mile East of Baumhart Rd.

PHONES: Amherst (440) 988-4477
Cleveland (440) 835-4728
Watts Line 1-800-686-4430
info@edwardstree.com
Fax (440) 988-4480

Complete Tree Care Is Our Business

March 04, 2025

KBC Advisors
5628 Airport Way S
Suite 238
Seattle, WA 98108
Phone: 224-244-0710
Email: jonathan.postweiller@kbcadvisors.com

Dear Jonathan Postweiller:

We would like to submit the following non prevailing wage **Revision #2** proposal for the clearing of Arco/Murray Gahanna Logistics Center, Gahanna, OH. Completion date of June 15, 2025.

The SCOPE of Clearing Work consists of: Mowing or shredding small trees and brush, cutting down and chipping remaining trees, hauling most chips off site, grinding stumps in place nominally 5" or larger, where accessible and not embedded in rock, chips and wood becomes property of Edwards Landclearing, Inc.. Brush that has been mowed or shredded, and stump grinder chips will not be removed from site.

Due to brown bat regulations, Edwards will drop existing trees by March 31st dead line and at a later date yet to be determined to chips trees, grind stumps and mow site. Edwards asks that construction drive be installed where the north permanent entrance drive will be installed. Ground is level with curb and require less construction work by excavating company.

Number of construction acres.....7.5 acres

Clearing Areas:

A. Separate windrow of trees left by others and
chip up as much as possible.....1.0 acre..\$14,500
B. Open areas in woods that requires scattered
mowing and small tree removal.....1.0 acre..\$ 900
C. Dropping of standing trees.....5.50 acre..\$12,100
D. Chipping and stumping site.....5.50 acre..\$31,750
First Mobilization for the crew.....\$ 5,500
ODOT permit fees for the crew.....\$ 650
Franklin County Ohio Sales Tax.....\$ 5,232
Total price for clearing.....\$70,632.00
Additional Mobilization, demobilization
and permits if required by OTHERS,.....as stated above

Notes:

Scheduling subject to availability.



An Equal Opportunity Employer

MEMBER OF INTERNATIONAL SOCIETY OF ARBORCULTURE



This quote is based on current prices of on and off road diesel fuel at the time of bid. Should prices increase more than 3% by the time the work is performed we will have to charge a fuel recovery fee accordingly.

Stand by time: If we cannot perform our job due to others holding us up, i.e. layout staking, re-staking, wood timber matting, (or lack of), and/or bridging, stream/wetland crossings, SWPPP approval, fence (or guardrail) openings/temporary fencing, maintenance of traffic, goal post installations, access into job, land acquisitions, etc.....\$600.00 per hour

General contractor to install a 50' x 100' compacted stone construction drive for clearing crew to stage on. Must have 14'6" of clearance from overhead utilities. Entrance to have 70' taper at the road.

All erosion and sediment control measures to be done by others.

General contractor to furnish and install all creek, stream, ditch, ravine and wetland crossings.

All fences, posts, gates, rocks, concrete, asphalt, shredded material, spoils from chipper, tires, vehicles, farm machinery, building materials and all other such debris to be removed by others.

No root raking. No removal of tree roots. No removal of debris left by chipper. No removal of organic matter in topsoil or subsoil.

All tree and shrub protection measures to be installed by general contractor.

All overhead utility and cable wires to be removed and all buried utilities to be located and marked before clearing starts.

Maintenance of traffic to be by general contractor i.e. flaggers, signage, detours, work zones, barrels, cones, arrow boards, portable traffic lights, message boards, Leo's etc., or other compliances with local authorities for the duration of the clearing project.

The owner is responsible for obtaining all necessary permits.

Prior to the start of clearing, the owner is responsible for marking ALL property lines, corners and boundaries including clearing limits by a registered surveyor or the owner's representative; nominally every 100', every 50' in curves.

Edwards Landclearing, Inc. will call OUPS to have utilities marked, if any excavation is needed. Any utilities that are disturbed that are not marked are not the liability of Edwards Landclearing, Inc..

This does not include grading, leveling, root raking or filling impressions made by our land clearing crews or holes made by our stump grinding crews. Tree protection fence and erosion control such as silt fence or SWPP plan is not included. No removal of existing fence, i.e. chain link, farm fence, posts, concrete or other debris left onsite.

This proposal covers only those items indicated. Any other items not shown shall be considered extras. Any extras will be done as time and material and not at the quoted acreage rate.

Upon acceptance of this proposal, please sign and fax back all pages to our office.

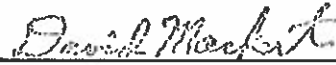
Net: 10 days

NOTE: Finance charge 1%

per month after net 30

days, no retainers

- Annual percentage 12%



Respectfully, David Mackert

M-216-244-4430



Accepted by: Print & Sign Date

Ryan O'Leary - Partner

KBC Illinois Investments, LLC



CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY)
3/10/2025

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must have ADDITIONAL INSURED provisions or be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER
Hylant - Cleveland
6000 Freedom Sq Dr, Ste 400
Independence OH 44131

CONTACT
NAME: Jenny Nugent

PHONE
(A/C, No, Ext): 567-316-0305

FAX
(A/C, No):

E-MAIL
ADDRESS: jenny.nugent@hylant.com

INSURER(S) AFFORDING COVERAGE

NAIC #

INSURER A : Cincinnati Insurance Co

10677

INSURER B : AGCS Marine Insurance Company

22837

INSURER C : Ironshore Specialty Ins Co

25445

INSURER D : Westfield Specialty Insurance Company

16992

INSURER E :

INSURER F :

INSURED
Edwards Landclearing Inc
49090 Cooper Foster Pk Rd.
Amherst OH 44001

License#: 23894
EDWATRE-01

COVERAGES

CERTIFICATE NUMBER: 359376332

REVISION NUMBER:

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	ADDL SUBR INSD WVD	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS
A	☒ COMMERCIAL GENERAL LIABILITY ☐ CLAIMS-MADE ☒ OCCUR GEN'L AGGREGATE LIMIT APPLIES PER: ☐ POLICY ☒ PRO-JECT ☒ LOC ☐ OTHER		EPP0342647	7/31/2024	7/31/2025	EACH OCCURRENCE \$ 1,000,000 DAMAGE TO RENTED PREMISES (Ea occurrence) \$ 500,000 MED EXP (Any one person) \$ 10,000 PERSONAL & ADV INJURY \$ 1,000,000 GENERAL AGGREGATE \$ 2,000,000 PRODUCTS - COM/OP AGG \$ 2,000,000 \$
A	☒ AUTOMOBILE LIABILITY ☒ ANY AUTO ☐ OWNED AUTOS ONLY ☐ SCHEDULED AUTOS ☒ HIRED AUTOS ONLY ☒ NON-OWNED AUTOS ONLY		EPP0342647	7/31/2024	7/31/2025	COMBINED SINGLE LIMIT (Ea accident) \$ 1,000,000 BODILY INJURY (Per person) \$ BODILY INJURY (Per accident) \$ PROPERTY DAMAGE (Per accident) \$ \$
A D	☒ UMBRELLA LIAB ☒ OCCUR ☐ EXCESS LIAB ☐ CLAIMS-MADE DED RETENTION \$		EPP0342647 XLS-430075J-00	7/31/2024 7/31/2024	7/31/2025 7/31/2025	EACH OCCURRENCE \$ 3,000,000 AGGREGATE \$ 3,000,000 Excess Policy \$ 2,000,000
A	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? (Mandatory in NH) If yes, describe under DESCRIPTION OF OPERATIONS below	Y/N ☐ N/A	EPP0342647	7/31/2024	7/31/2025	☐ PER STATUTE ☒ OTH-ER Ohio Stop Gap E.L. EACH ACCIDENT \$ 1,000,000 E.L. DISEASE - EA EMPLOYEE \$ 1,000,000 E.L. DISEASE - POLICY LIMIT \$ 1,000,000
B C	Equipment Leased/Rented Pollution		SML 93058744 ICELLUW00160323	7/31/2024 7/31/2024	7/31/2025 7/31/2025	Limit Deductible Limit \$ 6,165,645 \$2,500/\$10,000 1,000,000

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (ACORD 101, Additional Remarks Schedule, may be attached if more space is required)

CERTIFICATE HOLDER

KBC Advisors
5628 Airport Way S, Suite 238
Seattle WA 98108

CANCELLATION

SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS.

AUTHORIZED REPRESENTATIVE

Nicholas E. Hylant



**Bureau of Workers'
Compensation**

30 W. Spring St.
Columbus, OH 43215

Certificate of Ohio Workers' Compensation

This certifies that the employer listed below participates in the Ohio State Insurance Fund as required by law. Therefore, the employer is entitled to the rights and benefits of the fund for the period specified. This certificate is only valid if premiums and assessments, including installments, are paid by the applicable due date. To verify coverage, visit www.bwc.ohio.gov, or call 1-800-644-6292.

This certificate must be conspicuously posted.

Policy number and employer
00404955

EDWARDS LAND CLEARING INC
49090 COOPER FOSTER PARK RD
AMHERST OH 44001-9649

Period Specified Below
07/01/2024 to 07/01/2025



www.bwc.ohio.gov
Issued by: BWC

Administrator/CEO

You can reproduce this certificate as needed.

Ohio Bureau of Workers' Compensation

Required Posting

Section 4123.54 of the Ohio Revised Code requires notice of rebuttable presumption. Rebuttable presumption means an employee may dispute or prove untrue the presumption (or belief) that alcohol, marihuana or a controlled substance not prescribed by the employee's physician is the proximate cause (main reason) of the work-related injury.

The burden of proof is on the employee to prove the presence of alcohol, marihuana or a controlled substance was not the proximate cause of the work-related injury. An employee who tests positive or refuses to submit to chemical testing may be disqualified for compensation and benefits under the Workers' Compensation Act.



**Bureau of Workers'
Compensation**

You must post this language with the Certificate of Ohio Workers' Compensation.